AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

12/09/2023 - Submission - R - s35 confidentiality order application

Received Document

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Index Description	R - s35 confidentiality order application
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Description / Comments

From: Young, Oliver <Oliver.Young@ags.gov.au>
Sent: Tuesday, 12 September 2023 8:13 AM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: tom@tomandcolegal.com.au; info@tomandcolegal.com.au
Subject: 2023/3361, 2023/3363 & 2023/4494 - Vida Ried & Ors v Commissioner of the NDIS Quality and Safeguards Commission - Submissions [AGSDMS-DMS.FID4932078]
Importance: High

EXTERNAL EMAIL
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Dear Registrar

ATTENTION: Deputy President Mischin

Further to the below, and to assist the Tribunal at the hearing of the s 35 application this morning, we attach the Respondent's submissions in support of the application.

Regards
Oliver

Oliver Young
Senior Executive Lawyer (A/g)

IN THE ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/3361; 2023/3363; 2023/4494**

VIDA REID, SIMON REID, FORWARD FOCUSED GROUP PTY LTD
Applicants

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

OUTLINE OF THE RESPONDENTS SUBMISSIONS IN SUPPORT OF REQUEST FOR CONFIDENTIALITY ORDERS

1. On 8 August 2023, the respondent sought orders pursuant to s 35 of the *Administrative Appeals Tribunal Act 1975*, in relation to a number of documents set out in a document titled "Index – confidential and redacted Tribunal documents" filed on behalf of the respondent. For the avoidance of doubt, that index sets out 9 documents which have not been provided to the applicants in the T documents (numbered 1 – 9) and parts of 20 documents which have been provided to the applicants but redacted (the information covered by the redaction being the information that is sought to be covered by this application) (numbered 12 -32). Documents 10 and 11 in the index are duplicates of documents appearing elsewhere in the index.

2. By letter dated 23 August 2023, the applicants' representative objected to the section 35 application and proposed orders on the basis "that the proposed orders sought are broad and inherently prejudicial to our clients". In this letter, the applicants also indicated that they "reserve their rights to determine having the proceeding stayed after the outcome of the section 35 proceeding".

3. These submissions have been prepared in advance of the interlocutory hearing listed for Tuesday 12 September 2023.

4. To avoid any confusion, the respondent has filed and served Tribunal documents in all three applications -Mrs Vida Reid's Tribunal bundle, which is the lead application, consists of 1155 pages, Mr Simon Reid's Tribunal bundle consists of 49 pages and the Tribunal bundle for Forward Focused Group Pty Ltd (**FFG**) consists of 101 pages.

Background to these proceedings

5. These proceedings have been brought challenging the decisions of the respondent to issue banning orders against each of the applicants under section 73ZN of *the National Disability Insurance Scheme Act 2013* (**NDIS Act**).

6. The banning orders against Mrs Vida Reid and Mr Simon Reid were made on the basis that they are not suitable to be involved in the provision of supports or services to people with

disability as per section 73ZN(2)(a)(iii) of the NDIS Act. The banning order against Forward Focused Group Pty Ltd (**FFG**) was made on the basis that the registration of the entity as a registered NDIS provider had been revoked as per section 73ZN(1)(a) of the NDIS Act.

7. Mrs Vida Reid and Mr Simon Reid have, at various periods, been the sole director (in the case of Mrs Vida Reid) or co-directors of Forward Focused Group Pty Ltd (the third applicant), which was a registered NDIS provider. Both the first and second applicants have also been associated with an unregistered NDIS provider, Hybrid Hive Pty Ltd. Unrelated to these proceedings, but relevant by way of background, Hybrid Hive Pty Ltd has been prohibited from providing supports and services to NDIS funded participants (by way of banning order dated 21 December 2022).

8. On 19 October 2022, Mrs Vida Reid was arrested and charged with several offences under sections 135.1(3) and 400.9(1) of the Criminal Code (Cth) which is contained in the Schedule to the *Criminal Code Act 1995* (Cth). Those charges related to Mrs Vida Reid allegedly defrauding the National Disability Insurance Scheme (**NDIS**).

9. Specifically, the charges were that:

    9.1. Between 1 December 2021 and 17 May 2022 at Perth in the State of Western Australia, Mrs Reid dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at that time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code;

    9.2. between 26 December 2021 and 23 June 2022 at Perth in the State of Western Australia, Mrs Reid dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth);

    9.3. between 30 November 2021 and 8 April 2022 at Perth in the State of Western Australia, Mrs Reid caused payment requests to be submitted, which she knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth); and

    9.4. between 18 November 2021 and 19 April 2022 at Perth in the State of Western Australia, Mrs Reid caused payment requests to be submitted, which she knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth).

10. Mrs Reid is aware that further charges will be laid and the nature of these further charges will be made clear when the Commonwealth Director of Public Prosecutions (CDPP) serves his brief of evidence on the defence (which has not yet been done). The next in court date for this matter is 4 November 2023.

11. There have been no charges laid against Mr Simon Reid, however the evidence lodged in the criminal proceedings against Mrs Vida Reid contains allegations that Mr Simon Reid also engaged in fraudulent activity. As has been made clear to the second applicant, these allegations are directly relevant to his suitability as it indicates, in the respondent's view, that

he has engaged in serious wrongdoing towards NDIS participants and in the broader scheme of the NDIS.

12. The situation in relation to FFG, is somewhat similar to Mr Simon Reid, in that FFG's involvement in the fraudulent activity which is the subject of the criminal proceedings is made out in the evidence lodged in those proceedings. Specifically, the respondent's position is that FFG engaged in fraudulent activity, or more specifically, that it was used as a vehicle through which fraud was perpetrated against the NDIS by its key personnel.

13. Furthermore, the NDIS Act is beneficial legislation, designed to provide people with disability the supports and services they need, as well as providing a framework for quality supports and services, and to safeguard people with disability against harm and poor quality supports and services. Given the protective nature of the NDIS Act, it is important that confidential communications and practices of the respondent when undertaking regulatory action are preserved to ensure the integrity of the NDIS.

14. The respondent also contends that the applicants are not prejudiced as a result of the confidential information being redacted. This is because the respondent's reasons for the reviewable decision have been fully disclosed to the applicants and the T-documents filed in these proceedings provide a sufficient evidential basis on which the case against each of the applicants, and the basis on which the banning orders were issued, can be understood.

Relevant provisions of the Administrative Appeals Tribunal Act 1975 (AAT Act)

15. Section 35 of the AAT Act relevantly states:

Orders for non-publication or non-disclosure

(4) The Tribunal may, by order, give directions prohibiting or restricting the publication or other disclosure, including to some or all of the parties, of information that:

(a) relates to a proceeding; and
(b) is any of the following:
(i) information that comprises evidence or information about evidence;
(ii) information lodged with or otherwise given to the Tribunal.

(5) In considering whether to give direction under subsection (2), (3) or (4), the Tribunal is to take as the basis of its consideration the principle that it is desirable:
(a) that hearings of proceedings before the Tribunal should be held in public; and
(b)that evidence given before the Tribunal, and the contents of documents received in evidence by the Tribunal, should be made available to the public and to all the parties; and
(c) that the contents of documents lodged with the Tribunal should be made available to all the parties.

However (and without being required to seek the views of the parties), the Tribunal is to pay due regard to any reasons in favour of giving such a direction, including, for the purposes of subsection (3) or (4), the confidential nature (if applicable) for the information.

Previous decisions concerning s 35, AAT Act

General principles

16. In *Re Pochi and Minister for Immigration and Ethnic Affairs*[1] the Tribunal, constituted by then President Brennan J, his honour emphasised that giving orders under (then) s35(2) was a "serious step" in light of (then) s35(3), and went on to say at 55:

> Yet the powers conferred upon this Tribunal by s35(2) are not intended to lie dormant - they are there to be exercised, albeit sparingly. The purpose of their exercise is to secure the Tribunal the availability of as much relevant information as possible, without violating the confidentiality which a party, a witness or the public is properly entitled to preserve (though a proper entitlement to confidentiality is not lightly established).

17. In *Re Flood and Secretary, Department of Social Security*[2], the 3-member Tribunal (Senior Member Dwyer presiding) unanimously refused to make a s 35 order in relation to its reasons for decision but upheld an application for a s35(2)(b) order from the applicant in respect of the transcript of proceedings. The applicant was concerned that evidence he had given during the hearing might prejudice his position in other legal proceedings if an order were not made. In reaching its decision, the Tribunal said at paragraph 17:

> We consider that the legislation requires a balancing of public and private interests.

18. In *Re Pochi and Minister for Immigration and Ethnic Affairs,* the then President Brennan J considered the issues surrounding the granting of a confidentiality order over information to exclude a party to proceedings and said (at 56-57):

> Nevertheless, if an applicant is not given a full opportunity to deal with confidential information adverse to his interests, the probative force of the information must be particularly cogent if that information is to be acted upon. There are notorious risks in failing to hear an opposing view--slender proofs may falsely seem irrefragable, and the scales of justice may falsely seem to be tipped by the weight of insubstantial factors.
>
> In the present case, the public interest in protecting the sources of information used to combat crime was paramount, and it was necessary to ensure confidentiality of the evidence which referred to information of that kind given to Detective Jenkins.

19. In *MRWL and Australian Securities and Investments Commission*[3]*,* Senior Member Grigg when considering an application for section 35 orders lodged by the applicant who was seeking to challenge a banning order made against him said (at 123):

> The norm is that proceedings are held in public, as reflected in section 35 of the AAT Act. It is important for the open administration of justice that proceedings be held in public and that decisions are published. However, sections 35(2) — (4) establish that there may be occasions when privacy and non-publication orders should be made at the discretion of the Tribunal. What is necessary for such a discretion to be exercised will vary from matter to matter and is entirely dependent on the merits and specific facts of the case. Although each matter is decided on its own facts, other Tribunal and Court decisions may provide guidance and examples of when it has been considered appropriate to exercise the section 35 discretion. A consideration of other

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1 (1979) 2 ALD 33.

2 Unreported AAT decision No V93/325 dated 21 January 1994.

3 [2022] AATA 3366.

> Tribunal decisions, although not binding, is an important step to ensuring consistency. Although the Tribunal is not bound by other decisions, it can be guided by them, with a view to ensuring that parties are treated equally and fairly and providing a form of precedence that the public can take notice of.

20. The respondent acknowledges that as a general rule the contents of documents lodged with the Tribunal should be made available to the public and to all the parties. However, in the present case, the respondent submits that striking a balance between the public and private interest requires the protection of the respondent's ability to receive confidential complaints about providers and to liaise effectively with the National Disability Insurance Agency (**NDIA**) to enable them to perform their statutory and regulatory functions effectively. The respondent seeks confidentiality orders for the following reasons:

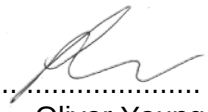
21. As set out above, Mrs Vida Reid has been informed that further charges will be brought against her. These further charges directly arise as a result of the ongoing criminal investigation (emphasis added) undertaken by the NDIA. Confidential index documents 1 – 9 are all documents that have either been drafted by the NDIA, summarise conversations between the respondent's staff and the NDIA and are all relevant to the ongoing criminal investigation. To disclose this information would undermine and could prejudice the investigative methodology and procedures adopted by both the NDIA and the NDIS Commission when conducting inquiries into allegations of criminal activity involving and impacting on people with disability. If this type of information were made public, or even disclosed to the applicants, it may compromise the respondent's ability to be an effective regulator, and may provide a basis for other NDIS providers and workers to evade the respondent's regulatory powers and methods to addressing non-compliance in the future, which would be detrimental to people with disability.

22. Furthermore, the criminal investigation has been informed by a number of things including complaints which have been made on a confidential basis either to the NDIA or to the respondent (and sometimes both). The redactions applied to documents 12 -32 as set out in the confidential index primarily contain information that could lead to the identification of a confidential complainant. While the respondent acknowledges it is desirable for proceedings before the Tribunal to be heard in public, in the present case the public interest in protecting the confidentiality of the information should prevail. Disclosing the identity of individuals who have provided information to the respondent on a confidential basis is likely to seriously undermine the ability of the respondent to convince individuals to provide information about alleged misconduct in future.

23. Finally, the respondent is aware of its ongoing disclosure obligation to the Tribunal and accepts that over time, the sensitivity in the documents may well change. This is particularly likely to be the case as the criminal prosecution against Mrs Vida Reid progresses and/or reaches its conclusion. With this in mind, the respondent anticipates regularly reviewing the documents set out in the confidential index with a view to disclosing them if and/or when, the grounds for this application fall away.

24. Nevertheless, for the reasons set out above the respondent submits that the disclosure of the material set out in the confidential index would be contrary to the public interest.

Date: 12 September 2023



.....

Oliver Young
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

ADMINISTRATIVE APPEALS TRIBUNAL
GENERAL DIVISION
PERTH REGISTRY **2023/3361, 2023/3363 AND 2023/4494**

VIDA REID, SIMON REID AND FORWARD FOCUSSED GROUP PTY LTD
Applicants
COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

SUBMISSIONS OF RESPONDENT IN SUPPORT OF APPLICATION FOR STAY

1. By letter dated 9 October 2023, the Respondent communicated her request that these proceedings be stayed (that is adjourned) pending the outcome of the criminal proceedings against the first defendant, Vida Reid.

2. The Respondent has discussed this proposal with the applicants' representatives who have initially signalled their agreement to stay the application lodged by Mrs Vida Reid but not the applications lodged by Mr Simon Reid and Forward Focussed Group Pty Ltd. The Respondent understands that the applicants no longer agree that any application should be stayed.

3. These submissions have been prepared in accordance with the orders of Deputy President Mischin dated 17 October 2023.

Background to these proceedings

4. These proceedings have been brought challenging the decisions of the respondent to issue banning orders against each of the applicants under section 73ZN of *the National Disability Insurance Scheme Act 2013* (**NDIS Act**).

5. The banning orders against Mrs Vida Reid and Mr Simon Reid were made on the basis that they are not suitable to be involved in the provision of supports or services to people with disability as per section 73ZN(2)(a)(iii) of the NDIS Act. The banning order against Forward Focused Group Pty Ltd (**FFG**) was made on the basis that the registration of the entity as a registered NDIS provider had been revoked as per section 73ZN(1)(a) of the NDIS Act.

6. Mrs Vida Reid and Mr Simon Reid have, at various periods, been the sole director (in the case of Mrs Vida Reid) or co-directors of Forward Focused Group Pty Ltd (the third applicant), which was a registered NDIS provider. Both the first and second applicants have also been associated with an unregistered NDIS provider, Hybrid Hive Pty Ltd. Unrelated to these proceedings, but relevant by way of background, Hybrid Hive Pty Ltd has been prohibited from providing supports and services to NDIS funded participants (by way of banning order dated 21 December 2022).

Lodged on behalf of the Applicant
Contact: Karlie Dickinson

Prepared by: Karlie Dickinson
AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*
File ref: 22004627
Telephone: 03 9242 1244
Facsimile: 03 9242 1333
E-mail: peta.heffernan@ags.gov.au

Address for Service:
The Australian Government Solicitor
Level 33, 600 Bourke Street
MELBOURNE VIC 3000

7. On 19 October 2022, Mrs Vida Reid was arrested and charged with several offences under sections 135.1(3) and 400.9(1) of the Criminal Code (Cth) which is contained in the Schedule to the *Criminal Code Act 1995* (Cth). Those charges related to Mrs Vida Reid allegedly defrauding the National Disability Insurance Scheme (**NDIS**).

8. Specifically, the charges were that:

    8.1. Between 1 December 2021 and 17 May 2022 at Perth in the State of Western Australia, Mrs Reid dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at that time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code;

    8.2. between 26 December 2021 and 23 June 2022 at Perth in the State of Western Australia, Mrs Reid dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth);

    8.3. between 30 November 2021 and 8 April 2022 at Perth in the State of Western Australia, Mrs Reid caused payment requests to be submitted, which she knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth); and

    8.4. between 18 November 2021 and 19 April 2022 at Perth in the State of Western Australia, Mrs Reid caused payment requests to be submitted, which she knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth).

9. Mrs Reid is aware that further charges will be laid and the nature of these further charges will be made clear when the Commonwealth Director of Public Prosecutions (CDPP) serves his brief of evidence on the defence (which has not yet been done). The next in court date for this matter is early November 2023.

10. There have been no charges laid against Mr Simon Reid, however the evidence lodged in the criminal proceedings against Mrs Vida Reid contains allegations that Mr Simon Reid also engaged in fraudulent activity. As has been made clear to the second applicant, these allegations are directly relevant to his suitability as it indicates, in the respondent's view, that he has engaged in serious wrongdoing towards NDIS participants and in the broader scheme of the NDIS.

11. The situation in relation to FFG, is somewhat similar to Mr Simon Reid, in that FFG's involvement in the fraudulent activity which is the subject of the criminal proceedings is made out in the evidence lodged in those proceedings. Specifically, the Respondent's position is that FFG engaged in fraudulent activity, or more specifically, that it was used as a vehicle through which fraud was perpetrated against the NDIS by its key personnel.

12. Mrs Vida Reid is represented in her criminal proceedings by Tom & Co Legal, who are also representing all three applicants in these AAT proceedings.

Principles

13. Pursuant to section 2A of the *Administrative Appeals Tribunal Act 1975* (the **AAT Act**),

in carrying out its functions, the Tribunal must pursue the objective of providing a mechanism of review that:

(a) is accessible; and
(b) is fair, just, economical, informal and quick; and
(c) is proportionate to the importance and complexity of the matter; and
(d) promotes public trust and confidence in the decision-making of the Tribunal.

14. Furthermore, under subsection 40(3) of the **AAT Act**, for the purpose of reviewing a decision, the Tribunal may:

Adjourn the proceeding from time to time.

15. The general power of a Court to control its proceedings, including the power to grant a temporary stay of those proceedings in various circumstances is well known. The Respondent therefore requests that the Tribunal exercise its discretion to stay the proceedings in the interests of justice where there is concurrent criminal proceedings on foot or where there is a "reasonable possibility" that proceedings will be instituted, see the cases cited in *Wide Bay Conservation Council Inc v Burnett Water Pty Ltd ("Wide Bay") [2010] ALMD 7901; [2008] FCA 1900 at [19]-[23*].

16. Importantly at paragraph 21, the observations of Wootten J (in *McMahon v Gould* (1982) 7 ACLR 202, a case which is cited in *Wide Bay*), are set out as follows:

I approach the decision of this matter with the following guidelines:

(a) Prima facie a plaintiff is entitled to have his action tried in the ordinary course of the procedure and business of the court (Rochfort v John Fairfax & Sons Ltd at 19);

(b) It is a grave matter to interfere with this entitlement by a stay of proceedings, which requires justification on proper grounds(ibid);

(c) The burden is on the defendant in a civil action to show that it is just and convenient that the plaintiff's ordinary rights should be interfered with (Jefferson v Bhetcha at 905);

(d) Neither an accused (ibid) nor the Crown (Rochfort v John Fairfax & Sons Ltd at 21) are entitled as of right to have a civil proceeding stayed because of a pending or possible criminal proceeding;

(e) The court's task is one of "the balancing of justice between the parties" (Jefferson Ltd v Bhetcha at 904), taking account of all relevant factors (ibid at 905);

(f) Each case must be judged on its own merits, and it would be wrong and undesirable to attempt to define in the abstract what are the relevant factors (ibid at 905);

(g) One factor to take into account where there are pending or possible criminal proceedings is what is sometimes referred to as the accused's "right of silence", and the reasons why that right, under the law as it stands, is a right of a defendant in a criminal proceeding (ibid at 904). I return to this subject below;

(h) However, the so-called "right of silence" does not extend to give such a defendant as a matter of right the same protection in contemporaneous civil proceedings. The plaintiff in a civil action is not debarred from pursuing action in accordance with the normal rules merely because to do so would, or might, result in the defendant, if he wished to defend the action, having to disclose, in resisting an application for summary judgment, in the pleading of his defence, or by way of discovery or otherwise, what his defence is likely to be in the criminal proceeding (ibid at 904–5);

(i) The court should consider whether there is a real and not merely notional danger of injustice in the criminal proceedings (ibid at 905);

(j) In this regard factors which may be relevant include:

(i) the possibility of publicity that might reach and influence jurors in the civil proceedings (ibid at 905);

(ii) the proximity of the criminal hearing (ibid at 905);

(iii) the possibility of miscarriage of justice eg by disclosure of a defence enabling the fabrication of evidence by prosecution witnesses, or interference with defence witnesses (ibid at 905);

(iv) the burden on the defendant of preparing for both sets of proceedings concurrently (Beecee Group v Barton);

(v) whether the defendant has already disclosed his defence to the allegations (Caesar v Somner at 932; Re Saltergate Insurance Co Ltd at 736);

(vi) the conduct of the defendant, including his own prior invocation of civil process when it suited him (cf Re Saltergate Insurance Co Ltd at 735–6);

(k) The effect on the plaintiff must also be considered and weighed against the effect on the defendant. In this connection I suggest below that it may be relevant to consider the nature of the defendant's obligation to the plaintiff;

(l) In an appropriate case the proceedings may be allowed to proceed to a certain stage, eg, setting down for trial, and then stayed Beecee Group v Barton).

(Citations of authorities mentioned omitted).

17. The Respondent also seeks to rely on *Re AWB Limited* [2008] VSC 473 where Robson J confirmed that an exercise of the discretion to stay a civil proceeding may be sought where there is a “reasonable possibility” that related criminal proceedings will

be instituted (in circumstances where they have not been instituted to date). Specifically, at paragraph 94 Robson J confirmed that he accepted "*that the court's inherent jurisdiction confers on [him] discretion to grant a stay of the civil penalty proceedings against the defendants where criminal proceedings are threatened for conduct that is substantially the same as the conduct constituting the contravention alleged in the civil claim.*"

18. Moreover, Robson J at paragraph 99 applied the *McMahon v Gould* principles as set out above at paragraph 16 and stated "*I take into account that the guiding principles is the interests of justice and that each case is to be judged on its merits. In particular, I consider whether there is a real and not merely a notional danger of injustice in the criminal proceedings."*

19. As mentioned above at paragraph 9, Mrs Vida Reid is the subject to current ongoing criminal proceedings. These proceedings have not reached finality and indeed the Respondent has sought confidentiality orders in relation to material set out in the Tribunal documents lodged with these applications specifically to protect the identity of potentially vulnerable witnesses and also the identity of potentially vulnerable confidential complainants. Given the banning orders have been made in relation to the same subject matter, it is difficult to understand both how witnesses who have yet to be called in the criminal proceedings but moreover, Mrs Vida Reid, would provide evidence in these proceedings without potentially jeopardising the criminal proceedings.

20. The next in court date for Mrs Vida Reid is early November 2023. The Respondent is not a party to these proceedings and would request that the applicants update the Court in relation to the status of the criminal proceedings. The Respondent does note however that there has already been media coverage of the proceedings that have been brought and submits that there is a real possibility that any information disclosed as a result of these proceedings (which is not covered by a section 35 order) may well reach and influence the prosecution witnesses or interfere with defence witnesses.

21. Similarly, the material lodged in the Respondent's Tribunal documents contains allegations that Mr Simon Reid, although not the subject of criminal proceedings at present, has also engaged in fraudulent activity. These allegations arise as a result of Mr Reid jointly running the business, Forward Focused Group (the third applicant) with his wife Mrs Reid.

22. Furthermore, the NDIS Act is beneficial legislation, designed to provide people with disability the supports and services they need, as well as providing a framework for quality supports and services, and to safeguard people with disability against harm and poor quality supports and services. Given the protective nature of the NDIS Act, it is important that where allegations of fraud or any criminal activity involving people with disability and/or vulnerable individuals are made and criminal charges subsequently laid, that the criminal proceedings are not jeopardised in any way.

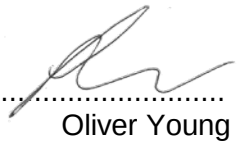
23. Finally, the Respondent is aware that the applicants are keen to progress with these applications and will be happy to work on an expedited timetable to progress these

matters when the current (and any reasonably possible) criminal proceedings are concluded.

Summary and Order sought

24. Having regard to the matters referred to above, the Commissioner seeks an order that these AAT applications be stayed until the concurrent criminal proceedings or any future criminal proceedings arising from the same set of circumstances has been determined.

Date: 2 November 2023



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Oliver Young
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

02/11/2023 - Submission - R - Stay application

Received Document

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Description / Comments

From: Winship, Kayla <Kayla.Winship@ags.gov.au>
Sent: Thursday, 2 November 2023 1:16 PM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: tom@tomandcolegal.com.au; Young, Oliver <Oliver.Young@ags.gov.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: Vida Reid, Simon Reid and Forward Focussed Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission 2023/3361, 2023/3363 & 2023/4494 [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

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Dear Registrar

Please find attached, for filing, the Respondent's Submissions in support of Stay Application.

Please note, the Applicant's representative has been copied in by way of service.

Kind regards

Kayla Winship
Senior Legal Assistant
Australian Government Solicitor
T 03 9242 1375
kayla.winship@ags.gov.au
Find out more about AGS at http://www.ags.gov.au

ADMINISTRATIVE APPEALS TRIBUNAL
GENERAL DIVISION
PERTH REGISTRY **2023/3361, 2023/3363 AND 2023/4494**

VIDA REID, SIMON REID AND FORWARD FOCUSSED GROUP PTY LTD
Applicants
COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS IN REPLY

1. These submissions have been prepared in accordance with the orders of Deputy President Mischin dated 17 October 2023 and in response to the Applicants' submissions (**AS**) dated 16 November 2023.

Observations

2. We acknowledge paragraph 2 of the AS, in particular, that:

    a) Ms Vida Reid does not oppose the application of a stay in relation to her AAT application (2023/3361) and,

    b) at paragraph 19(b), that "the Applicants largely agreed with the Commissioner's application for section 35 orders. They will consent to appropriate orders for a private hearings, non-publication and non-disclosure." Noting if the stay applications are granted that application need not be determined at this time.

3. The Respondent otherwise refutes the allegation (paragraph 16 of the AS) that she has repeatedly breached Tribunal orders and delayed in requesting that these matters be stayed. The Respondent has, at all times, engaged with the Applicants' representatives with a view to progressing the applications in an expeditious and efficient manner.

Submissions in response

4. In response to paragraph 9 of the AS, and the submission that "it cannot be said similar proceedings against Mr Reid are 'on the cards' or a 'reasonable possibility' in sense referred to by Robson J in *Re AWB Limited* [2008] VSC 473", the Respondent submits that delay itself does not negate the "reasonable possibility" of charges being brought.

5. The Respondent draws attention to T8 of Ms Vida Reid's Tribunal bundle, ("Tribunal documents"), a document entitled "Statement of material facts pursuant to section 35

Lodged on behalf of the Applicant
Contact: Karlie Dickinson

Prepared by: Karlie Dickinson
AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*
File ref: 22004627
Telephone: 03 9242 1244
Facsimile: 03 9242 1333
E-mail: peta.heffernan@ags.gov.au

Address for Service:
The Australian Government Solicitor
Level 33, 600 Bourke Street
MELBOURNE VIC 3000

of the Criminal Procedure Act 2004" which starts at page 149, and in particular the overview set out in the first four paragraphs (repeated here for ease of reference):

> **OVERVIEW**
>
> 1. On 19 October 2020, the National Disability Insurance Agency (NDIA) approved Forward Focused Group Pty Ltd, trading as Forward Focused (FFG), to provide services to National Disability Insurance Scheme (NDIS) participants in Western Australia. Mrs Vida REID (V REID) is the Director, shareholder and joint signatory to the company bank accounts. Mr Simon REID (S REID) is a shareholder, joint signatory to the company bank accounts and former Director.
>
> 2. Hybrid Hive Pty Ltd (HYBRID) is an unregistered provider of services to NDIS participants in Western Australia. The sole Director of HYBRID is V REID. The sole shareholder of HYBRID is The HIVE Pty Ltd (HIVE). The sole Director of HIVE is S REID. The shareholders of HIVE are V REID and S REID. The joint signatories for the HYBRID bank account are V REID and S REID.
>
> 3. It is alleged that, between 26 November 2021 and 22 June 2020, V REID and S REID caused 81 false 'payment requests' to be submitted against the funding of two disabled persons participating in the NDIS, with the intention of dishonestly causing a loss to the Commonwealth.
>
> 4. As a result of these false claims, V REID and S REID received money reasonably suspected of being proceeds of crime to the sum of $247,484.78.

6. In light of this overview the Respondent submits that similar proceedings against Mr Reid are 'on the cards' or a 'reasonable possibility' as referred to by Robson J in *Re AWB Limited* [2008] VSC 473.

7. In response to paragraph 13 of the AS, where it is stated "there is also no evidence before the AAT as to when any criminal trial concerning Ms Reid and FFG may occur", as Ms Reid is represented in her criminal prosecution by the same solicitor that is representing her (and Mr Reid and FFG) in these AAT applications, the Applicants must be aware that the criminal proceedings against Ms Vida Reid have been delayed as a result of a claim of legal professional privilege over electronic information that they themselves have lodged. Further, that the Court directed the parties to resolve this dispute by consent before Christmas and that the matter be listed for mention in February 2024.

8. It is the Respondent's submission that if the Tribunal would be assisted by further detail in relation to the criminal charges brought against Ms Vida Reid and the subsequent prosecution, including the likely timeframe to trial, then the Applicants should be directed to provide this information.

9. In response to paragraph 19(a) of the AS, where it describes the Respondent's submission as a "generalised and vague assertion" that "criminal proceedings will be potentially jeopardised if witnesses to those proceedings also given evidence in these AAT proceedings", the Respondent reiterates that there are numerous references

throughout the documentation stating that complainants were fearful of raising complainants. For example, at page 165 of the Tribunal documents:

> Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022.
>
> The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14).
>
> The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicated that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed.
>
> Example: Complaint #4-38279458621
>
> PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues.
>
> (NAME REDACTED)
>
> "I would like to remain anonymous due to security reasons as I'm scared for my family at this moment in time with most recent events".

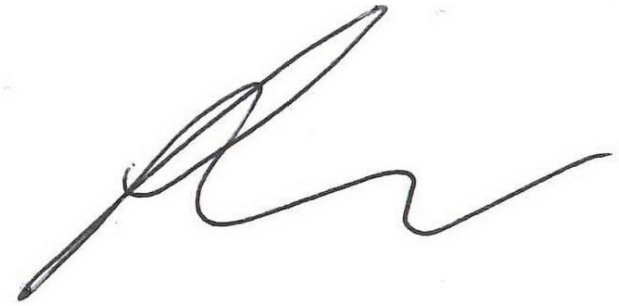
10. The Respondent repeats her submission that criminal proceedings will be potentially jeopardised if witnesses to those proceedings also given evidence in these AAT proceedings.

11. Finally, the Respondent acknowledges the affidavit of Mr Simon Reid and the statements contained therein. In the absence of any supporting documentation of financial hardship and in light of the, not insignificant matters of which Mr Reid is alleged to have been involved in, the Respondent submits that the affidavit should be given little weight.

Summary and Order sought

12. Having regard to the matters referred to above, the Commissioner continues to seek an order that these AAT applications be stayed until the concurrent criminal proceedings or any future criminal proceedings arising from the same set of circumstances has been determined.

Date: 29 November 2023



Oliver Young
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

ADMINISTRATIVE APPEALS TRIBUNAL
GENERAL DIVISION
PERTH REGISTRY **2023/3361, 2023/3363 AND 2023/4494**

VIDA REID, SIMON REID AND FORWARD FOCUSSED GROUP PTY LTD
Applicants
COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS IN REPLY

1. These submissions have been prepared in accordance with the orders of Deputy President Mischin dated 17 October 2023 and in response to the Applicants' submissions (**AS**) dated 16 November 2023.

Observations

2. We acknowledge paragraph 2 of the AS, in particular, that:

    a) Ms Vida Reid does not oppose the application of a stay in relation to her AAT application (2023/3361) and,

    b) at paragraph 19(b), that "the Applicants largely agreed with the Commissioner's application for section 35 orders. They will consent to appropriate orders for a private hearings, non-publication and non-disclosure." Noting if the stay applications are granted that application need not be determined at this time.

3. The Respondent otherwise refutes the allegation (paragraph 16 of the AS) that she has repeatedly breached Tribunal orders and delayed in requesting that these matters be stayed. The Respondent has, at all times, engaged with the Applicants' representatives with a view to progressing the applications in an expeditious and efficient manner.

Submissions in response

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> 4. As a result of these false claims, V REID and S REID received money reasonably suspected of being proceeds of crime to the sum of $247,484.78.

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8. It is the Respondent's submission that if the Tribunal would be assisted by further detail in relation to the criminal charges brought against Ms Vida Reid and the subsequent prosecution, including the likely timeframe to trial, then the Applicants should be directed to provide this information.

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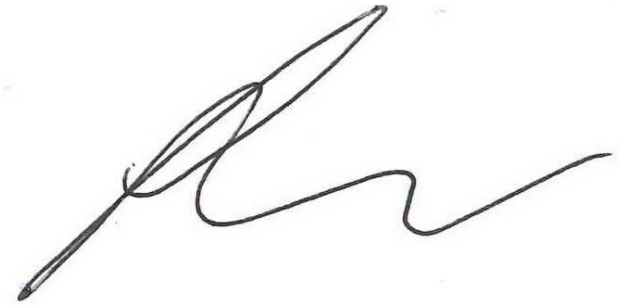
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Summary and Order sought

12. Having regard to the matters referred to above, the Commissioner continues to seek an order that these AAT applications be stayed until the concurrent criminal proceedings or any future criminal proceedings arising from the same set of circumstances has been determined.

Date: 29 November 2023



Oliver Young
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

From:	Dickinson, Karlie
To:	Tom Monks; Perth Registry
Subject:	RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]
Date:	Wednesday, 29 November 2023 9:30:36 AM
Attachments:	20231129 - Submissions in response - stay 23004627(49887500.1).pdf

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OFFICIAL

Dear Perth Registry

Attention: Natalie D

Further to the Directions of Deputy President Mischin dated 24 October 2023, please find attached the Respondent's submissions in reply.

Please note that the Respondent does not agree that the interlocutory application to be listed should be heard in-person. Video and telephone conferencing to date has been effective, including in terms of minimising cost.

The Applicants' representative is copied to this email.

Yours sincerely

Karlie

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

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OFFICIAL

From: Tom Monks <tom@tomandcolegal.com.au>
Sent: Thursday, 16 November 2023 8:26 PM
To: Administrative Appeals Tribunal - Perth Registry <Perth.registry@aat.gov.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

CAUTION: This email originated from outside of the organisation. Do not follow guidance, click links, or open attachments unless you recognise the sender and know the content is safe.

Dear Perth Registry

Attention: Natalie D

We refer to the above matter and to the Directions dated 24 October 2023 (**Directions**) by Deputy President Mischin.

Pursuant to paragraph 3 of the Directions we attached the following:

1. Submissions in opposition to application for stay of proceedings; and
2. Affidavit of Simon Reid.

Given the issue of stability for teleconferencing or videoconferencing that we had previously experienced, it may be of assistance to the Tribunal for the interlocutory hearing to be heard on-site.

We have copied Ms Dickinson into this email.

Kind regards

Tom Monks | Legal Practitioner Director
LPN 5512580
phone +61 (08) 6255 5737
email tom@tomandcolegal.com.au
office 45 Delawney Street, Balcatta, WA 6021
web www.tomandcolegal.com.au

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Administrative Appeals Tribunal

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AAT case/review number *

2023/3361

Applicant's family name or organisation name *

Reid

Please note: We need you to enter the name of the person or organisation who applied for the review, even if you are not the applicant. The applicant's name can usually be found on any letter or other document from the AAT. You should enter the applicant's family name unless the application has been made by an organisation.

What is your role in the case? *

Respondent representative

What is your name? *

Irfana Sirguroh

This is the name of the person who is using this service to send us documents. We need the name so that we can contact you if we have any questions about the documents you are sending us.

We will also send a confirmation email to this email address after we have received the documents.

What is your email address? *

irfana.sirguroh@ags.gov.au

Australian mobile number

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Have you sent or will you be sending a copy of the document or documents to the other party? *

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By selecting 'Yes' to this question, you are taken to have sent a copy of the document(s) to the other party. If you have not already sent the document(s) to the other party, please do not copy the AAT when you send the document(s).

Comments (maximum 150 characters)

Are you sending us Section 37 documents (T-documents) on behalf of the agency, organisation or person who made the decision we are reviewing? *

( ) Yes (●) No

Documents

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Document 1

Document type *

Submission

Description (maximum 150 characters)

Respondent's submissions in reply

File *

Other attached files: 20240228 Respondent's Submissions in Reply - Stay 23004627.pdf

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ADMINISTRATIVE APPEALS TRIBUNAL
GENERAL DIVISION
PERTH REGISTRY **2023/3361, 2023/3363 AND 2023/4494**

VIDA REID, SIMON REID AND FORWARD FOCUSSED GROUP PTY LTD
Applicants
COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS IN REPLY

1. These submissions have been prepared in accordance with the order of Deputy President Mischin dated 9 February 2024 and in response to the Applicants' submissions (**AS**) dated 12 February 2024 opposing the Respondent's application that Application 2023/3363 of Simon Reid be adjourned or stayed pending the termination or resolution of criminal proceedings against Vida Reid.

2. We note for completeness that although the Applicants' have argued against the section 35 orders sought by the Respondent (paragraphs 48 – 62 AS), we do not understand the Tribunal's direction to order a response to this application at this time. Accordingly, these submissions are limited to the application to adjourn or stay Simon Reid's AAT application (2023/3363).

Legal Submissions

3. Paragraphs 35 – 41 of the AS set out some of the key principles set out in the case of *Street Nation Pty Ltd v Australian Communications Authority [2004] AATA 1251* and are not repeated here. This case was further considered in *YFFM and Australian Securities and investments Commission [2009] AATA 489* (attached for ease of reference), where the law is set out in paragraphs 20 – 32 (inclusive).

4. After considering the parties' contentions, Senior Member Penglis in *YFFM,* determined the relevant principles to be:

> *43. I consider the relevant legal principles to be those identified in the Tribunal's decisions to which I have referred and in Sage.*
>
> *44. In particular, I accept the respondent's submission that cases such as McMahon, Re AWB and HLP Financial Planning do not articulate the principles relevant to a consideration of whether or not administrative proceedings (as opposed to civil proceedings) ought to be stayed because of pending or likely criminal charges.*

Lodged on behalf of the Applicant
Contact: Karlie Dickinson
Prepared by: Karlie Dickinson
AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*
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Telephone: 03 9242 1244
Facsimile: 03 9242 1333
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MELBOURNE VIC 3000

45. The questions for determination therefore are whether:

- *the hearing and determination of this matter by the Tribunal may cause the Tribunal to be in contempt of court as prejudicing any subsequent criminal prosecution of the applicant and/or*

- *the proceedings ought be stayed in order to preserve the integrity of the Tribunal's process.*

Application of YFFM to these proceedings

5. Mrs Vida Reid appeared before the Perth Magistrates Court for a mention hearing on 23 February 2024 in relation to the criminal proceedings lodged against her. These criminal proceedings have not progressed as there remains an outstanding legal professional privilege objection in relation to documents obtained pursuant to a search warrant. We understand that the expectation is for this issue to be discussed and, ideally resolved, between the Commonwealth DPP and Mrs Reid's legal team.

6. As a result of the issue set out above, a brief of evidence in relation to Mr Simon Reid has not been sent by the National Disability Insurance Agency (NDIA) to the Commonwealth DPP.

7. For completeness, Mr Simon Reid was offered the opportunity to speak with the NDIA investigators at the time when the search warrant was executed on the marital home, he declined.

8. For the reasons set out in *YFFM*, and in particular in paragraph 48, the Respondent submits "that the prospect of the applicant being required to give evidence, and being subject to cross-examination, in relation to the same transactions which would be the subject of the possible criminal proceedings is sufficient to create a plausible apprehension of injustice and therefore contempt of any criminal proceedings which may be commenced". The only substantive difference in this application is that the Respondent cannot say that criminal proceedings are being actively considered by the Commonwealth DPP, as no brief of evidence has been provided.

9. Furthermore, given the same factual circumstance will need to be considered by the Tribunal in determining whether the banning order made against Simon Reid is reasonable, there is a significant risk that "potential damage…..could be caused to criminal proceedings if the jury were to learn that this Tribunal had made findings against the applicant…." Similarly, to *YFFM*, "the prospect of that occurring in this case is not fanciful given that the banning order and also the Tribunal's decision will be easily searchable on the internet as it will be a published decision of this Tribunal and will be "searchable" on the respondent's website. Then, of course, there is the prospect of the matter being given publicity in the media". It is well known that Mrs Reid's criminal proceedings have been reported in the media.

10. For these reasons, namely both to avoid a situation where the Tribunal may be in contempt of court and to preserve the integrity of the Tribunal process, the respondent submits that the Tribunal should grant this stay.

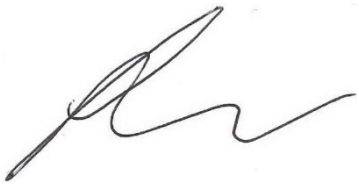
Clarification/Submissions in response

11. In response to paragraph 33 of the AS, and the submission that "It is clear by the Respondent's T-doc disclosure to the Applicant of only 50 pages, in contrast to Ms Vida Reid's T-doc of 1,162 pages, that the Commissioner's decision for Mr Reid was manifested by using untested evidence and unfounded allegations that before the Court, which he is not part of", the Respondent reminds the Applicants that Ms Vida Reid's T-doc disclosure is the lead bundle for the purposes of these applications and documents that relate to all **three applicants** are included in Mrs Reid's T-doc bundle. Mr Reid's T-doc bundle contains documents that are relevant **only** to Mr Reid. It is therefore not accurate to say there are only 50 documents that are relevant to Mr Reid, there are, in reality 1212 pages of relevant material.

Summary and Order sought

12. Having regard to the matters referred to above, the Commissioner continues to seek an order that these AAT applications be stayed until the concurrent criminal proceedings or any future criminal proceedings arising from the same set of circumstances has been determined.

Date: 28 February 2024



Oliver Young
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

ADMINISTRATIVE REVIEW TRIBUNAL **2023/3361**

BRISBANE REGISTRY **2023/3363**

2023/4494

VIDA REID
Applicant

SIMON REID
Applicant

FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS PURSUANT TO THE ORDERS OF DEPUTY PRESIDENT K MCMILLAN KC DATED 8 SEPTEMER 2025

A. Introduction and overview

1. The Applicant to Application No 2023/3361 (**Ms Vida Reid**) has made an application in the following terms:

   a. Stay of Proceedings: An order that the proceedings in AAT matter 2023/3361 (and in AAT matter 2023/4494, on behalf of FFG) be stayed pursuant to section 41 of the *Administrative Appeals Tribunal Act 1975* (Cth), until it is confirmed that no parallel law enforcement or related investigative action is ongoing that could prejudice the fairness of these proceedings.

   b. Severance of Proceedings: An order that I, VIDA REID's application be severed from, and heard separately to, the applications of Mr. Simon Reid and FFG. In effect, the Applicant seeks to set aside or vary the current direction that these matters be heard together, so that my case (2023/3361) proceeds on its own, distinct track. (For clarity, I, VIDA REID do not seek to affect Mr. Simon Reid's matter (2023/3363) except to the extent necessary to separate it from my own; Mr. Reid remains free to pursue or stay his application as he sees fit.)

2. While the applicant has referred to section 41 of the *Administrative Appeals Tribunal Act 1975* (Cth), it appears from the Applicant's submissions that the Applicant seeks a stay the substantive proceedings by way of adjournment in matters 2023/3361 (Vida Reid and

Commissioner of the NDIS Quality and Safeguards Commission) and 2023/4494 (Forward Focus Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission).

B. Background

3. Ms Vida Reid and Applicant to Application No 2023/3363 (**Mr Simon Reid**) were at various times the director of a number of entities providing NDIS services in Western Australia including the Applicant to Application No 2023/4494, namely, Forward Focused Group Pty Ltd (**FFG**), and Hybrid Hive Pty Ltd (**Hybrid**).

4. On 19 October 2022, Ms Vida Reid was arrested and charged with offences under sections 135.1(3) and 400.9(1) of the *Criminal Code Act 1995* (Cth) in relation to allegations of defrauding the National Disability Insurance Scheme (**NDIS**)[1].

5. On 20 December 2022, a delegate of the **Commissioner** of the NDIS Quality and Safeguards Commission made a banning order prohibiting Ms Vida Reid from having any involvement with or in the NDIS sector for a period of 5 years. That banning order was subsequently varied by another delegate of the Commissioner on 21 April 2023 to the extent the decision varied the legislative basis upon which the banning order was made and its scope[2].

6. On 20 December 2022, a delegate of the Commissioner revoked FFG's NDIS registration and made a banning order prohibiting FFG from providing supports or services to NDIS funding participants for a period of 10 years[3]. This was subsequently varied on 8 June 2023 to a banning order for a period of 3 years[4].

7. The directors of FFG included:

   7.1 Ms Vida Reid between 28 August 2020 to 1 November 2022; and

   7.2 Mr Simon Reid between:

      (a) 28 August 2020 to 3 January 2021; and

      (b) 1 November 2022 to date[5].

8. On 21 December 2022, a delegate of the Commissioner made a banning order prohibiting Mr Simon Reid from having any involvement with the NDIS sector for a period of 5 years[6].

---

1 See T07 and T08.

2 T01.1.

3 T72, T73.

4 T71.1.

5 Affidavit of Vida Reid Affirmed in January 2025, VR-1.

6 T64.1.

That banning order was subsequently varied by another delegate of the Commissioner on 21 April 2023[7].

9. On 10 May 2023, Ms Vida Reid and Mr Simon Reid both made an application to the Administrative Appeals Tribunal (**Former Tribunal**) seeking a review of their respective banning orders.

10. On 26 June 2023, FFG made an application to the Former Tribunal seeking a review of its banning order.

11. On 19 July 2023, Deputy President Mischin made orders for the review applications of FFG, Ms Vida Reid and Mr Simon Reid to be joined as associated cases, programmed and heard together and that the evidence in one application, subject to relevance, would be taken as evidence n the other applications.

12. On or about 31 October 2023, the Respondent made an application for a stay of the proceedings in light of the nature of the criminal proceedings of foot against Ms Vida Reid. On 17 January 2024, Deputy President Mischin, made orders adjourning the proceedings pending the termination or resolution of criminal proceedings against Ms Vida Reid.

13. On or about February 2024, the criminal charges against Ms Vida Reid were dropped. Given the circumstances, on 15 May 2024 the Former Tribunal made programming orders to progress the matters to final hearing.

14. On or about 3 October 2024, Ms Vida Reid foreshadowed making an application for a stay of her proceedings. Deputy President Lazanas made orders for Ms Vida Reid and FFG to file any evidence and written submissions by 24 October 2024[8]. The foreshadowed stay application was listed for hearing on 25 November 2024.

15. On 14 November 2024, orders for Ms Vida Reid and FFG to file evidence and written submission by 13 December 2024[9]. An interlocutory hearing was listed for 13 February 2025.

16. On 28 January 2025, Ms Vida Reid attempted to lodge an affidavit and submissions in relation to her own matter and on behalf of FFG requesting a stay. These materials were not sent to the correct registry email address, nor were they sent to Mr Simon Reid by Ms Vida Reid. As a result, the Respondent sent these materials to the correct Registry address and to Mr Simon Reid's then solicitor.

17. On 4 February 2025, Ms Vida Reid wrote to the Respondent and Administrative Review **Tribunal**:

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7 Ibid.

8 Orders of Deputy President Lazanas dated 3 October 2024.

9 Orders of Deputy President K McMillan KC dated 14 November 2024.

17.1 Complaining of a "breach of confidentiality" in relation to the Respondent's conduct in sending her request for a stay, including the affidavit and submissions to Mr Simon Reid's then legal representatives; and

17.2 Requesting that her and FFG's matters be separated from Mr Simon Reid's application.

18. On 13 February 2025, the interlocutory hearing was adjourned to enable the Tribunal to consider Ms Vida Reid's "breach of confidentiality" complaint.

19. On 6 June 2025, the Tribunal dealt with Ms Vida Reid's "breach of confidentiality" complaint and required Ms Vida Reid to file and serve on all parties, any application to stay her proceedings or to sever her proceedings from Mr Simon Reid or FFG along with any supporting documents or submissions by 27 June 2025.

20. On 16 August 2025, Ms Vida Reid filed the current applications.

C. Legal Principles – Adjournments

21. The Tribunal has powers to adjourn matters pursuant to s 82 of the *Administrative Review Tribunal Act 2024* (Cth) (**ARTA**). The Tribunal will not adjourn a hearing date unless it considers that there are good reasons to justify the adjournment[10]. Where the Tribunal adjourns a matter, it will seek to re-list the matter as soon as practicable afterwards[11].

22. The powers of the Tribunal must be considered in light of the objectives of the Tribunal, which require that applications to the Tribunal are resolved as quickly and with as little formality and expense as the proper consideration of the matter before the Tribunal permits[12].

23. There is no automatic right to a stay of civil proceedings merely because concurrent criminal proceedings are pending[13]. While it may be appropriate for the Tribunal to adjourn a matter where concurrent criminal proceedings arise out the same circumstances, there can be no basis for an adjournment where no criminal proceedings have been instituted, and no issues are under active consideration for criminal proceedings[14].

24. The delay of proceedings for an indeterminate period amount of time amounts to a refusal to hear those proceedings[15].

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10 Administrative Review Tribunal (Common Procedures) Practice Direction 2024 at [5.12].

11 Administrative Review Tribunal (Common Procedures) Practice Direction 2024 at [5.15].

12 ARTA, s 9(b).

13 *McMahon v Gould* (1982) 7 ACLR 202 at 206.

14 *Re Social Security, Department of & Pluta* (1991) 23 ALD 317 at [10].

15 *Cadbury UK Ltd v Registrar of Trade Marks* (2008) 107 ALD 316 at [9], [16].

25. Further, where the applicant is not actively pursuing their case, an adjournment may properly be refused[16].

D. Submissions – Adjournment

26. It is relevant to firstly note that Ms Vida Reid is not a director of FFG and has no authority to seek an adjournment on behalf of FFG. Mr Simon Reid is the sole director of FFG. While Mr Simon Reid has indicated his consent to the application[17], he has not sought an adjournment for himself or FFG. The application made on behalf of FFG should therefore be dismissed.

27. The Respondent submits that there is no evidence before the Tribunal that suggest that any criminal proceedings or investigations are currently against Ms Vida Reid. There is therefore no basis for a stay of these proceedings.

28. Further Ms Vida Reid has prolonged the application process having foreshadowed the application in October 2024. Since that date Ms Vida Reid has:

    28.1 Failed to comply with the Tribunal's orders to file documents concerning the application;

    28.2 Caused the anticipated hearing of the application to be vacated twice;

    28.3 Failed to serve documents to Mr Simon Reid and FFG, in circumstances where the proceedings have been joined and where the applications could affect Mr Simon Reid and FFG's proceedings;

    28.4 Raised privacy breach complaints against the NDIS Quality and Safeguards **Commission**; and

    28.5 Made an application to sever her proceeding from Mr Simon Reid.

29. The delay caused by her conduct and the very nature of an application for a stay suggests Ms Vida Reid is seeking to delay the final hearing. Without a proper basis, such conduct is improper and should not be permitted.

30. Ms Vida Reid asserts that a stay should be granted on the basis that:

    30.1 the interactions with the Australian Border Force (**ABF**), and through conversations with her former employees that there is currently an investigation being conducted in relation to Ms Vida Reid;

    30.2 the Respondent's previous position on a stay;

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16 *Cook v ASP Shipping Management Pty Ltd* (2008) 105 ALD 453; *Re Ugur and Australian Human Rights Commission* (2010) 114 ALD 192 at [26].

17 Statement by Mr Simon Reid dated 9 September 2025.

30.3 she would be prejudiced in that she may withhold evidence for fear of self incrimination or future repercussions; and

30.4 the issue of an alleged "privacy breach" is unresolved.

Investigations by Other Agencies

31. Ms Vida Reid raises concerns that there are ongoing investigations involving herself. She points to a number of events which she says indicates that there are ongoing investigations and potential proceedings that will be commenced against her.

32. The first set of incidents relates to interactions with the ABF [18] as she and her family were leaving Australia in September 2024. Ms Vida Reid refers to:

32.1 conversations by Mr Simon Reid with the ABF in relation to the criminal charges against Ms Vida Reid and an assertion that the NDIS and NDIS Minister has asked ABF to search her every time she enters or leaves the country[19];

32.2 how her possessions searched and allegedly copied[20]; and

32.3 how Mr Reid's iphone was not returned on that day[21].

33. In correspondence between the ABF and legal advisers of Mr Simon Reid and Ms Vida Reid[22], the ABF stated that:

33.1 they were entitled to examine goods belonging to Mr Simon Reid and Ms Vida Reid in accordance with the *Customs Act 1901* (Cth); and

33.2 the ABF did not make any copies of their electronic devices.

34. Two other interactions were between the ABF and Ms Vida Reid's daughter as she was leaving and entering Australia between October and November 2024[23].

35. There is nothing from the ABF to suggest that there is an ongoing investigation against Ms Vida Reid.

36. Ms Vida Reid's complaints about the ABF's actions and treatment of her do not equate to a disclosure of any specific investigation or intention to commence proceedings against Ms Vida Reid.

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18 Affidavit of Vida Reid Affirmed in January 2025 at [13] – [39].

19 Ibid at [16].

20 Ibid at [23.9].

21 Ibid at [24]. Mr Simon Reid's iPhone was subsequently returned to him on or about 2 December 2024.

22 Ibid, VR-3.

23 Ibid at [27] – [30].

37. Ms Vida Reid also refers to a call between herself and a former employee, Virginie Fanny-Dullo where Ms Fanny-Dullo was allegedly questioned by NDIS Investigators[24] in or about January 2025.

38. Following these matters being raised by Ms Vida Reid, the Respondent made inquiries with the National Disability Insurance Agency (**NDIA**) in March 2025 and was informed that there was no current criminal investigation pertaining to Ms Vida Reid or to FFG[25].

39. Ms Vida Reid seeks an adjournment until it is confirmed that there are no parallel law enforcement or related investigative action ongoing that could prejudice the fairness of these proceedings. Ms Vida Reid suggests that the Commission should comprehensively clarify that no criminal or fraud related agency (within or beyond NDIS) is investigating her. In effect, Ms Vida Reid seeks assurances that she will not be prosecuted for any criminal charges in the future. This proposal would result in an indeterminate delay of the proceedings which should not be permitted.

40. It is not the Commission's responsibility to seek or provide the assurances that Ms Vida Reid seeks and it is not appropriate for Ms Vida Reid to use the Tribunal or these proceedings to secure such assurances. Nor does the Tribunal have powers to require the Commission to seek out such assurances sought by Ms Vida Reid.

41. Ms Vida Reid bears the onus of demonstrating to the Tribunal that there are good reasons to stay the proceedings. Ms Vida Reid has not adduced any evidence:

    41.1 she has been charged of any criminal proceedings;

    41.2 that there are any current investigations by any government body or authority; or

    41.3 that any matters raised relate to the matters the subject of the review proceedings.

42. In those circumstances there is no basis for a stay of the current proceedings.

Complaints against the Commission

43. Ms Vida Reid has made various allegations against the Respondent or Commission to the effect that the Respondent or Commission have acted aggressively, unethically and has mislead the Tribunal. The Respondent denies any impropriety by the Respondent or Commission and does not intend to address the vague allegations which have no bearing on the application.

44. Ms Vida Reid asserts that there was some impropriety when Ms Karen Haywood from the Commission attending the hearing on 6 June 2025. Ms Haywood was identified as an investigator with the Commission. Ms Reid did not raise any issues with Ms Haywood's

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24 Affidavit of Vida Reid Affirmed in January 2025 at [31] – [3].

25 Letter dated 11 March 2025 from AGS to the Tribunal and Ms Vida Reid attached to her submissions filed 16 August 2025.

attendance at the hearing. The Commission is entitled to have its representatives attend any hearings on its behalf. It may be that Ms Vida Reid misunderstood Ms Haywood's role, given her title, however, there was nothing improper with her attendance at the hearing.

45. Ms Vida Reid complains that given there is no ongoing criminal proceedings, there is no justification for her ongoing ban and that the Commissioner should revise or lift the ban. Given the review proceedings remain on foot, the Commissioner currently has no power to amend or set aside the banning order[26]. The question of whether the banning order should be affirmed, varied, or set aside is a matter for the Tribunal to decide.

46. The proper course to have this matter determined and finalised would be to proceed with a final hearing.

The Commissioner's Previous Position

47. The circumstances of this application for a stay are materially different to the circumstances that existed in 2023. The Respondent's previous position was based on the fact that there were criminal charges laid against Ms Vida Reid. There is no evidence of any criminal charges at this stage. Each application must be considered on the relevant facts that exist at the time.

Privilege against self-incrimination

48. The privilege against self-incrimination is a substantive common law right[27] that applies regardless of whether any criminal proceedings are on foot. The privilege may be abridged or waived by statute[28], however there is no provision in the ARTA which does so. A person cannot be compelled to answer any question or to produce any document or thing if to do so may tend to bring them into the peril and possibility of being convicted as a criminal[29]. Whether or not a question or answer will expose a person to such a liability must be determined at the time of the hearing[30]. No adverse inference may be drawn against a person asserting a claim of privilege against self-incrimination[31].

49. Ms Vida Reid may seek to exercise the privilege against self-incrimination at a final hearing. Whether a question or document will incriminate her can only be determined during a final hearing. The issue is therefore not a legitimate basis to stay the proceedings.

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26 ARTA, s31(1).

27 *Reid v Howard* (1995) 131 ALR 609 at 616, 618.

28 Ibid at 618.

29 Ibid at 616.

30 *Brebner v Perry* [1961] SASR 177 at 181, *Re Bolton and Australian Securities and Investment Commission* [2018] AATA 976 at [54].

31 *Dolan v Australian & Overseas Telecommunications Corporation* (1993) 31 ALD 510 at 519.

Alleged Privacy Breach

50. On 6 June 2025, the Tribunal addressed Ms Vida Reid's complaint of an alleged privacy breach. The Tribunal informed Ms Vida Reid, that the complaint was not a matter that could be determined by the Tribunal. The issue is therefore not a legitimate basis to stay the proceedings.

E. Legal Principles – Severance of proceedings

51. The principles relevant to an application to separate parties to a proceeding are set out in detail in *Australian Securities and Investments Commission v Axis International Management Pty Ltd* [2009] FCA 250 at [9] – [13]:

> [9] The relevant principles are not controversial. The basic principle, which ought to guide the exercise of discretion, is that "the court should take whatever course seems to be most conducive to a just resolution of the disputes between the parties, but having regard to the desirability of limiting, so far as practicable, the costs and delay of the litigation": *Bishop v Bridgelands Securities* (1990) 25 FCR 311 at 314. This case involved an application for joinder of additional applicants, which raises similar considerations to the present one.
>
> [10] If inconvenience is alleged, it must be shown that there are factors which make it inconvenient for there to be a joint trial, rather than that a separate trial is more convenient: *Mann v Board of Health (ACT)* (1996) 67 FCR 383 at 399F.
>
> [11] Disadvantages to a defendant seeking a separate trial, including the possibility of unfairness, must be weighed against identified advantages to ASIC and to the defendants as a whole and the efficient use of the court's resources having regard to the commonality of issues raised by each claim: *Dean-Willcocks v Air Transit International Pty Ltd* (2002) 55 NSWLR 64 at [34]. The court should be concerned to determine what is the most efficient use of the resources of the parties and also of the court: *Carter v Commissioner of Taxation* (2001) 109 FCR 215 at [23].
>
> [12] Factors which have been held to weigh in favour of exercising the discretion to order separate trials include:
>
> (a) the issues concerning the party seeking the separate trial are distinct and discrete: *Bishop v Bridgeland Securities* at 314;
>
> (b) a joint trial will involve the respondent in the expense of being present at the trial of questions with which they are not concerned and it would be unfair for the respondent to be compelled to participate in a large and costly proceeding where it has only marginal involvement: *Hinze v Zed* [1926] SASR 77 at 84; *Knight v Beyond Properties Pty Ltd (No 2)* [2006] FCA 192 at [30] and *Newman v Hold Pty Ltd* [2001] VSC 282 at [17].

[13] Factors which have been held to militate against making such an order include:

(a) the potential overlap of evidence and argument, including the need for the same witnesses to be called at both trials: *National Mutual Property Services (Australia) Pty Ltd v Citibank Savings Ltd* [1996] FCA 1228 at [17]; *Dean-Willcocks v Cmr of Taxation* 2003 45 ACSR 298 at [18];

(b) the interrelationship between issues which are not capable of being resolved independently of each other: *Mann v Board of Health (ACT)* at 400F;

(c) the potential disqualification of the judge that hears the first trial, if adverse findings are made as to the creditability of witnesses: *National Mutual Property Services (Australia) Pty Ltd v Citibank Savings Ltd* at [16]; *Dean-Willcocks v Cmr of Taxation* at [18]; and

(d) the undesirability of inconsistent findings as to the same transactions: *Henschel v Brittany Crepe Co Pty Ltd* [1981] Qd r 173 at 175–176.

F. Submissions – Severance of proceedings

The Banning Orders

52. The Tribunal made orders to have the three matters joined and heard together on 19 July 2023. In doing so, the Tribunal has already considered the relevant factors necessary to join the proceedings. The only factors that have changed since July 2023 are that:

52.1 the criminal proceedings against Ms Vida Reid have been dropped; and

52.2 Ms Vida Reid, Mr Simon Reid and FFG are currently self-represented.

53. None of these matters materially impact the question of whether the proceedings should remain joined.

54. The respective banning orders made against Ms Vida Reid, Mr Simon Reid and FFG arose out of conduct relating to FFG and Hybrid in circumstances where:

54.1 the directors of FFG included:

(a) Ms Vida Reid between 28 August 2020 to 1 November 2022; and

(b) Mr Simon Reid between:

(i) 28 August 2020 to 3 January 2021; and

(ii) 1 November 2022 to date[32].

54.2 The director of Hybrid included:

(a) Ms Vida Reid between 1 December 2021 to 21 August 2022; and

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32 Affidavit of Vida Reid Affirmed in January 2025, VR-1.

(b) Mr Simon Reid between 17 February 2022 to date.

54.3 Claims were made by FFG and Hybrid to the NDIA for supports and services where participants have complained that they have not been provided with the service alleged by FFG or Hybrid. These include participants such as:

(a) Ms Meghan Goodwin, for services claimed during the period between January 2022 and May 2022[33]. Ms Goodwin's claims are supported by the statements of Ms Karen Ruth Canalija Marasigan[34], Ms Tabitha Sadler[35] and Ms Danica Rochelle Hall[36];

(b) Sarah Jane Cudlow, for services claimed during the period between October 2021 and July 2022[37];

(c) Max Teague, for services claimed during the period between February 2021 to March 2021[38];

(d) Yvonne Harrison between March 2021 and August 2022[39].

(e) Hrimnir Benediktsson, for services claimed during the period between June 2022 and August 2022[40];

(f) Charlie Harrison, for services claimed during the period between May 2021 and August 2022[41]; and

(g) Bassam Haidar, for services claimed during the period between April 2022 and April 2022. Mr Haidar's claims are supported by the statement of Ms Janine Hall[42].

54.4 Various complaints were made by participants including allegations of intimidation or harassment[43].

33 T18.

34 T38 at [26], Annexures A – E.

35 T9.20.

36 T21 at [21] – [22].

37 T11.

38 T12.

39 T39, T21 [23] – [26].

40 T29, pg. 797.

41 T33.

42 T20, T9.11 and T9.14.

43 T9.14, T9.23 and T18.

54.5 Mr Simon Reid and Ms Vida Reid became involved with Dream Big Employment Pty Ltd, which was involved with the provision of NDIS services, while their banning orders were in effect[44].

54.1 In considering whether the respective banning orders against Ms Vida Reid and Mr Simon Reid should be varied, amended or set aside, it will be necessary for the Tribunal to consider whether Ms Vida Reid and Mr Simon Reid are suitable to be involved in the provision of services to people with a disability pursuant to section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* (Cth) which will require findings relating to the allegations raised above, including

54.2 whether any NDIS funding was made or received, in circumstances where the services to which the funding was claimed, had not been provided to the participant;

54.3 whether Mr Simon Reid or Ms Vida Reid had intimidated or harassed any participants; and

54.4 whether Mr Simon Reid or Ms Vida Reid had contravened their respective banning orders.

55. Given Mr Simon Reid and Ms Vida Reid were at various times directors of both FFG and Hybrid, there will be a significant overlap between the proceedings in terms of the allegations against each party and the witnesses that may be called.

56. Ms Vida Reid asserts that she will be prejudiced if the matters are heard together given Mr Simon Reid and FFG have more legal resources. It is unclear why such a situation would cause any prejudice. In any event, it should be noted that previously all parties were represented by the same lawyer and all the applicants are currently unrepresented.

57. Ms Vida Reid also raises concerns of the logistics of multi-party proceedings and the concern that the presiding member will not be able to determine the matter based on the facts relevant to her alone. Those are matters that are dealt with regularly by the Tribunal and does not form a proper basis for an application to sever the proceedings.

58. The matters raised by Ms Vida Reid do not demonstrate that it is inconvenient for there to be a joint trial. Conversely, having multiple proceedings over the same issues and with the same witnesses will:

58.1 not be an efficient use of the Tribunals resources;

58.2 require witnesses to give their testimony multiple times;

58.3 runs the risk that multiple proceedings will result in inconsistent findings; and

58.4 not achieve the objectives of the ARTA.

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44 T62.1 at [52].

59. For those reasons the Commission submit that Ms Vida Reid's application to sever her proceedings from Mr Simon Reid and FFG be dismissed.

17 September 2025

J MOORE
Counsel for the Respondent

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

19/03/2026 - Submission - R short additional submission

Received Document

Document Category	Pre-hearing
Document Type	Submission
Index Description	R short additional submission
Date Lodged	19/03/2026
S.35 Order for this Document	No
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Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	Short Supplementary Submissions for Respondent (dated 19 March 2026)(68407667.1).pdf
View	Fw_ 2023_3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence4.pdf

Description / Comments Dear Hayley

Please accept our apologies for the lateness of this response.

The respondent agrees to the proposal to have the severance applications determined on the papers.

We attach short additional submissions for the Tribunal's consideration, solely in response to the additional submissions of the applicants dated 8 and 9 March 2026. These supplement, and should be read alongside, the respondent's previous submissions dated 17 September 2025 on the issue of severance.

If we can be of any further assistance to the Tribunal, please do not hesitate to let us know.

Yours sincerely

_____

Craig Land

ADMINISTRATIVE REVIEW TRIBUNAL
BRISBANE REGISTRY

2023/3361
2023/3363
2023/4494

VIDA REID
Applicant

SIMON REID
Applicant

FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

SUPPLEMENTARY SUBMISSIONS OF THE RESPONDENT

Introduction and Overview

1. By email on 8 March 2026, the applicant in each of these three related applications lodged further submissions with the Tribunal ahead of the case management hearing listed for 20 March 2026. In their further submissions:

    1.1. Ms Vida Reid confirmed that she would no longer be pressing her application to have her proceeding stayed;

    1.2. Ms Vida Reid confirmed that she still seeks to have her proceeding severed from those of Mr Simon Reid and Forward Focused Group Pty Ltd (**FFG**);

    1.3. Mr Simon Reid pressed an application to have his proceeding severed from those of Ms Vida Reid and FFG;

    1.4. Mr Simon Reid, as director of FFG, pressed an application to have FFG's proceeding delayed until after the proceedings of Ms Vida Reid and Mr Simon Reid have been heard; and

    1.5. both Ms Vida Reid and Mr Simon Reid foreshadowed requests to file updated Statements of Facts, Issues and Contentions (**SFIC**) and requested that the respondent provide them with additional documents prior to the filing of these SFICs.

2. By email dated 17 March 2026, the Tribunal wrote to the parties noting that Ms Vida Reid was no longer proceeding with her stay application and seeking the views of the parties as to whether the hearing on Friday 20 March 2026 to hear the interlocutory application to sever the joint proceedings for matters 2023/3361 and 2023/3363 be heard on the papers.

3. The Respondent is of the view that it would be appropriate for the Tribunal to determine the application to sever the joint proceedings on the papers and lodges these submissions solely to respond to the applicants' new submissions. They supplement, and should be read alongside, the respondent's previous submissions filed on 17 September 2025.

Severance of proceedings

4. The respondent continues to rely primarily on its submissions dated 17 September 2025 on the issue of severance.[1] The following submissions are made by way of response and for completeness only.

5. Ms Vida Reid's new submissions state that her application raises issues that are distinct from those raised in Mr Simon Reid's and FFG's proceedings, and which warrant severance from the other proceedings.[2] In particular, she has foreshadowed submissions relating to:

    5.1. whether the original notice of intention in relation to Ms Vida Reid's banning order was validly served in time to give her an opportunity to properly respond; and

    5.2. whether, during the Respondent's internal review of Ms Vida Reid's banning order, Ms Reid had a proper opportunity to respond to the delegate's proposal to amend the banning order.[3]

6. The respondent submits that these submissions are misconceived. The review before the Tribunal is not a judicial review, but rather a merits review. Ms Vida Reid will be provided the opportunity to provide a response relating to the banning order at the final hearing. The respondent submits that this does not provide a basis for Ms Vida Reid's proceeding to be severed from that of Mr Simon Reid or FFG.

7. Ms Vida Reid further states that her application should not be delayed by interlocutory disputes arising in the related matters.[4] It is not clear what interlocutory disputes are referred to by this submission, given that the main interlocutory dispute to date has been Ms Reid's own stay application (which she has now abandoned). In any event, for the reasons set out at paragraphs 8 and 9 below, the respondent submits that this submission should not be accepted.

8. Mr Simon Reid's submissions similarly state that his matter should not be delayed by interlocutory matters in the related matters.[5] The respondent, similarly, submits that this submission should not be accepted. As noted above, Ms Vida Reid has now abandoned her stay application. FFG has to date raised no separate interlocutory issues for consideration. As such, there are no further interlocutory matters on foot which could

1 Paragraphs [52]-[59] of the 17 September 2025 submissions.

2 Applicant's Short Directions Submissions of Vida Reid dated 8 March 2026 (**VR Submissions**), [11].

3 VR Submissions, [4]-[7].

4 VR Submissions, [12].

5 Applicant's Short Directions Submissions of Simon Reid dated 8 March 2026 (**SR Submissions**), [17]-[18].

result in additional delays to the hearing of Mr Simon Reid's proceeding, rendering severance unnecessary.

9. Finally, FFG's submissions request that its matter be deferred until after the proceedings against Ms Vida Reid and Mr Simon Reid have been dealt with.[6] For the reasons set out in the Respondent's 17 September 2025 submissions (in particular at paragraphs [55] and [58] of those submissions), the respondent submits such a deferral is not appropriate.

10. For these reasons (and those in the respondent's 17 September 2025 submissions), the applications by each of the three applicants to sever their respective proceedings from those of the other applicants should be dismissed.

Document Requests

11. Ms Vida Reid and Mr Simon Reid have each made disclosure requests in their submissions.[7] They each propose to put on a Statement of Facts, Issues and Conditions, or amended submissions, after the receipt of the requested documents.[8]

12. Subject to paragraphs [15] and [16] below, the respondent submits that these disclosure requests are unnecessary.

13. On 13 June 2024, the respondent filed with the Tribunal's predecessor body a tender bundle collating all of the documents in its possession or under its control which it said were relevant to the decision of the Tribunal, in accordance with its statutory obligations.[9] The majority of the documents now sought by Ms Vida Reid and, (subject to paragraph 15 below), Mr Simon Reid can be found in that tender bundle. The respondent does not propose to separately produce any documents which have previously been produced as part of the tender bundle.

14. On 26 July 2024, Deputy President Mischin of the Administrative Appeals Tribunal made non-disclosure and non-publication orders under sections 37(1AE) and 35(4) of the then-AAT Act in relation to a document previously filed with the Tribunal entitled 'Tactical Intelligence Report – Project Archer' and dated 18 August 2022. Consistent with the above orders, the respondent has not and does not intend to provide a copy of this Tactical Intelligence Report to the applicants.

15. Notwithstanding the above, it has recently come to the respondent's attention that the following documents relating to Mr Simon Reid were not included in the previous tender bundle:

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6 Applicant's Position Statement of Forward Focused Group Pty Ltd (**FFG Statement**), [8]-[11].

7 VR Submissions, [15]; SR Submissions, [19].

8 VR Submissions, [16]; SR Submissions, [19].

9 *Administrative Appeals Tribunal Act 1975* (Cth) s 37; replaced by *Administrative Review Tribunal Act 2024* (Cth) s 23.

15.1. Notice and Statement of Reasons for the original banning order against Simon Reid;

15.2. Briefing note EC22-002103;

15.3. Briefing note EC22-002429;

15.4. Briefing note EC22-002521;

15.5. Letter from Tom & Co Legal to the respondent dated 22 November 2022;

15.6. Letter from Tom & Co Legal to the respondent dated 30 November 2022;

15.7. Letter from Tom & Co Legal to the respondent dated 7 December 2022;

15.8. Statement of Cassandra Burke dated 16 February 2023 with certain attachments.

16. Given the length of time which has passed since the filing of the original tender bundle and to ensure that the documents set out at paragraph 14 are included, the respondent proposes to file and serve an updated tender bundle with the Tribunal and applicants. The respondent submits that this should address the concerns raised in Mr Simon Reid's submissions.

17. For the reasons set out above at paragraphs 4 to 16, coupled with the submissions lodged on 17 September 2025, the respondent submits that these applications should not be severed but rather that they should proceed as joint applications and be set down for substantive hearing as soon as possible.

Timetabling Orders Sought

18. In the event that the Tribunal determines that the applications will proceed as a joint application (and not be severed), the respondent proposes the following, or similar, timetabling orders be made.

18.1. by no later than 10 April 2026, the respondent to file an updated tender bundle consisting of all documents required to be produced under section 23 of the *Administrative Review Tribunal Act 2024* (Cth) (except for the Tactical Intelligence document referred to in Deputy President Mischin's orders of 26 July 2024);

18.2. by no later than 1 May 2026, the applicants to each file an updated Statement of Facts, Issues and Contentions and any further evidence on which they propose to rely;

18.3. by no later than 22 May 2026, the respondent to file its Statement of Facts, Issues and Contentions and any further evidence on which it proposes to rely;

18.4. by no later than 5 June 2026, the applicants to each file their responses (if any);

18.5. the matters to then be set down for hearing at the first available date after 5 June 2026, with an estimated listing of 2 days.

Date: 19 March 2026

.....

Karlie Dickinson
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Outlook

Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

From Sydney Registry <Sydney.Registry@art.gov.au>
Date Fri 20/3/2026 6:13 AM
To MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>

1 attachment (204 KB)
Short Supplementary Submissions for Respondent (dated 19 March 2026)(68407667.1).pdf;

Natalie S
Tribunal Services Officer
Administrative Review Tribunal

From: Land, Craig <Craig.Land@ags.gov.au>
Sent: 19 March 2026 16:47
To: Sydney Registry <Sydney.Registry@art.gov.au>
Cc: vida_reid@yahoo.com <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Hayley Bird <Hayley.Bird@art.gov.au>; simon reid <reid.simon4@gmail.com>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Hayley

Please accept our apologies for the lateness of this response.

The respondent agrees to the proposal to have the severance applications determined on the papers.

We **attach** short additional submissions for the Tribunal's consideration, solely in response to the additional submissions of the applicants dated 8 and 9 March 2026. These supplement, and should be read alongside, the respondent's previous submissions dated 17 September 2025 on the issue of severance.

If we can be of any further assistance to the Tribunal, please do not hesitate to let us know.

Yours sincerely

Craig Land
Lawyer
Australian Government Solicitor

T 03 924 21469
craig.land@ags.gov.au

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From: simon reid <reid.simon4@gmail.com>
Sent: 19 March 2026 14:47
To: Brisbane Registry <brisbane.registry@art.gov.au>
Cc: vida_reid@yahoo.com; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Land, Craig <Craig.Land@ags.gov.au>; hayley.bird@art.gov.au
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Subject: ART Nos. 2023/3363 and 2023/4494 – Response to Tribunal correspondence dated 9 March 2026

Dear Tribunal,

Thank you for your correspondence.

In relation to ART No. 2023/3363, Mr Simon Reid consents to the severance application being determined on the papers. Mr Reid supports severance for the reasons set out in his short directions submissions filed 6 March 2026.

Mr Reid notes that his directions submissions also seek production orders and programming directions in ART No. 2023/3363 which go beyond the severance question. Mr Reid respectfully requests that those matters be addressed at the earliest opportunity, whether at the hearing listed for 20 March 2026 or by separate directions on the papers.

In relation to ART No. 2023/4494, Forward Focused Group Pty Ltd consents to determination on the papers and relies on its position statement already filed. FFG remains on foot but does not seek priority listing ahead of the individual matters.

I note the reference in the Tribunal's correspondence to "20 March 2025" and understand this is intended to refer to 20 March 2026.

Yours sincerely,

Simon Reid
Applicant (ART No. 2023/3363)
Director, Forward Focused Group Pty Ltd (ART No. 2023/4494)

On Tue, 17 Mar 2026 at 10:13 am, Brisbane Registry <brisbane.registry@art.gov.au> wrote:

> Dear Parties,
>
> The Tribunal received correspondence on 9 March 2026 from Ms Vida Reid advising that she is withdrawing the interlocutory application in matter 2023/3361. I further note that correspondence from Mr Simon Reid confirms that the interlocutory application is unrelated to matters 2023/3363 and 2023/4494.
>
> Given the withdrawal, the Tribunal seeks the views of the parties as to whether the hearing on Friday 20 March 2025 to hear the interlocutory application to sever the joint proceedings for matters 2023/3361 and 2023/3363 be heard on the papers.
>
> Pending the disposal of that application, the above matters will be listed for a substantive hearing.
>
> Should parties have any questions or concerns, please contact the Tribunal by way of reply email.
>
> Yours sincerely,
>
> **Hayley B**
> Member Support Officer - Legal
>
> **Administrative Review Tribunal**
>
> T: 1800 228 3 33
> E: brisbane.registry@art.gov.au
>
> www.art.gov.au
>
> Your enquiry is important to us.
> Due to a high volume of enquiries, we are taking longer than usual to reply to emails and requests. We appreciate your patience and understanding as we work to respond as quickly as possible.
> To apply for a review, submit documents, or for more information, visit www.art.gov.au.
> For reviews of NDIS matters lodged after 28 March 2025, documents must be emailed to ARTReviews@art.gov.au.
>
> The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.
>
> *The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.*
>
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